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ALGERIA

Human Rights Developments

Dramatic political developments, coupled with a decline in violent incidents, fueled optimism among Algerians that the country had turned the corner on the worst years of civil strife. The new president, Abdelaziz Bouteflika, won popular support for his blunt talk about government corruption and for offering a partial amnesty to Islamist rebels as a step toward achieving peace and reconciliation. However, he devoted little energy to establishing safeguards against future human rights violations or accountability for past abuses.

If the numbers of arrests, killings, and "disappearances" were down, Algeria remained the most violent country in the Middle East and North Africa. While the Islamic Salvation Army (Armée Islamique du Salut, AIS) generally respected a cease-fire it declared in 1997, others, particularly the groups known under the Armed Islamic Group rubric (Groupe islamique armé, GIA), continued to target civilians indiscriminately. Hundreds of unarmed men, women, and children were slaughtered in brutal fashion in attacks, particularly in rural areas, that were officially blamed on "terrorists." Scores of teenage and adult women were abducted in these attacks. According to the testimony of women who had survived captivity, some abducted women were enslaved, raped, and later executed.

The GIA generally did not claim responsibility or explain motives for particular attacks on civilians, although communiqués issued in its name were occasionally received by foreign media. There was speculation that in many instances families or villages were selected for indiscriminate slaughter because members were suspected of opposing or withdrawing assistance from the armed groups.

Within the framework of fighting "terrorism" and "subversion," the security forces continued to employ brutal methods. Accounts of army and police operations carried by the Algerian press, which was constrained to rely heavily on security sources, continued to depict raids that resulted in the deaths of unnamed "terrorists" but almost never their capture. But reports of torture, which had become systematic since 1992 in the interrogation of security suspects, declined along with the number of confirmed new arrests.

Algeria's conflict continued to be characterized by an extreme lack of accountability for abuses. Tens of thousands of persons were killed, "disappeared," or abducted since 1992, without, in the vast majority of cases, law enforcement authorities formally investigating and elucidating what happened. Nor did trials serve often as a venue for carefully weighing evidence that linked deeds to particular individuals.

In August and September 1997, large massacres, officially attributed to "terrorists," claimed a total of more than 600 civilian lives in Bentalha, Rais, and Beni Messous, on the outskirts of the capital. Yet authorities never produced a complete list of victims, named suspects in the attacks, or issued the results of any inquiry into how assailants could commit such carnage close to military bases without being challenged by the security forces.

Similarly, there was no prosecution in the most widely publicized case of abuse perpetrated by the thousands of "self-defense" militias that were armed and officially supervised by the security forces as local allies in repelling Islamist attacks. The case involved two mayors in Relizane province who,

together with their armed subordinates, allegedly carried out a series of abductions and executions of suspected Islamists and their relatives. The two were arrested briefly in April 1998 and later dismissed from their posts, but had not been brought to trial as of October 1999.

Bouteflika, a former foreign minister, was elected to a five-year term April 15 in a vote marred by the last-minute withdrawal of the other six candidates, who charged the outcome was being engineered in his favor by the military establishment. This turn of events disappointed many who had been encouraged by the vigor and pluralism of the race, in which important issues were debated on television, in the print media, and in public meetings and rallies.

Inaugurated April 27, Bouteflika moved quickly on his plan for peace. He unveiled a draft "Civil Harmony law" after the AIS offered to make its 1997 cease-fire permanent. The law, which developed the terms of a 1995 clemency decree, was adopted by parliament in July and overwhelmingly endorsed in a national referendum September 16. Bouteflika also freed some persons imprisoned in connection with the conflict and shed the official discourse that sought to minimize the devastation it had wrought. On June 27, he announced that 100,000 Algerians had died since the strife began in 1992, a number more than three times greater than the last official figure to be issued. He also spoke with sympathy about the thousands of Algerians who had "disappeared," and abandoned the official line that denied a security-force role in the phenomenon.

But if more candid than his predecessors, Bouteflika accorded low priority to investigating the grave violations of the recent past and pursuing some form of justice for the victims. Explaining in a July 7 Radio France Internationale interview why relatives of the "disappeared" had to be patient, he declared, "We must first try to establish peace and security....If we try to attack all the problems at once we shall lose our way." When advocates of the "disappeared" continued to press their case he betrayed exasperation, chiding them at a public appearance in Algiers on September 15, "I have no interest in keeping [the "disappeared "] in my pocket!....How are you going to leave this war behind if you don't forget?"

While there were few reports of persons "disappearing" in 1998 or 1999, almost no Algerians who had "disappeared" in earlier years reappeared; nor was their fate or location revealed. Bureaus that the Interior Ministry had established in 1998 to receive and investigate complaints of "disappearances" closed quietly without, in the vast majority of cases, producing information.

Meanwhile, human rights workers and relatives of the "disappeared" expanded the list of documented cases to over 4,000. This figure included only those cases with some evidence of security force involvement, usually either witnesses who saw the person being arrested or, at some point, in custody.

Counted separately from "disappearances," and usually referred to as "abducted," were Algerians missing after apparently being seized by armed groups since 1993. Little progress was made in determining the fate of these victims, estimated in the thousands by groups embracing their cause such as Djazairouna (Our Algeria) and Sumoud (Steadfastness). A link was presumed between these abductions and the mass graves in abandoned wells in the Mitidja region, the discovery of which was reported by the Algerian press during 1998 and 1999. The press often attributed these discoveries to surrendering rebels who revealed where the armed groups had disposed of their victims. Yet, much to the frustration of organizations representing victims of "terrorism," the authorities themselves said little about these discoveries and divulged almost no identifying or forensic information about the scores of bodies-many decomposed-reportedly found at these sites. Absent such information, it was not possible to confirm whether some or all the victims were indeed persons kidnaped and then executed by armed groups, or others who had "disappeared" into secret security force custody.

The Civil Harmony law offered an exemption from prosecution for persons "implicated in acts of terrorism and subversion" who turned themselves in by January 2000 and vowed to cease all such actions. It offered reduced sentences, but no amnesty, to surrendering militants "responsible for causing the death or permanent injury of a person or for rape, or for using explosives in public places or in places frequented by the public." Rebels responsible for crimes meriting the death penalty or life imprisonment would be subject instead to a maximum twenty-year sentence. As of early October, officials said 531 persons had turned themselves in under the amnesty law; it was not yet possible to confirm this number or assess the treatment they had received.

While Bouteflika expended less effort than earlier officials on whitewashing the abuses committed by security forces, he never insisted that they be held accountable. The situation in Algeria was too "complex" for a truth commission, he said in an interview with *El País* published July 28. "The devastating deviations of a minority should not choke the aspirations of the majority," the Spanish daily quoted him as saying. "What Algeria needs is reconciliation, democracy, liberty, and development."

And in September, Bouteflika warned rebels who did not turn themselves in by the expiration of the amnesty on January 13, 2000 that they would be combated with "all the means the state has at its disposal." He declared ominously, "I want to say this before everybody-before the United Nations, before Amnesty International, before the world community. We will use all means."

On June 26, Bouteflika announced that "thousands" of prisoners "detained for supporting terrorists" would be freed on the occasion of Algeria's independence day, July 5. "Those convicted of shedding blood and of rape," however, would not be eligible. No official number was given for prisoners actually released on and since that date, but some press reports put the number as of late September at about 2,500.

Many defendants jailed since the mid-1990s were convicted in group trials on "terrorism"-related charges in which the prosecution did not materially link individual defendants to specific acts of violence. Judges presiding over such trials were often presented with claims by defendants that their confessions and statements-usually the sole pieces of evidence presented by the prosecution-had been extracted under torture, in violation of domestic and international law. Yet the presiding judges rarely if ever ordered medical examinations of the defendants to determine the veracity of their claims of torture.

Some of those freed had been convicted under broadly worded statutes that criminalized acts of speech or nonviolent association. The penal code's article 87b is, in particular, provided that anyone who belonged to or participated in a "terrorist" organization and who is aware of its objectives and activities is subject to prison terms of between ten and twenty years. Persons who "advocate, encourage, or finance" acts of "terrorism" or "subversion" or who reproduce or knowingly distribute materials that advocate such acts are subject to prison terms of five to ten years.

The releases begun in July freed only a portion of Algerians imprisoned in connection with the conflict. At that time, the prison population was thought to have changed little from the level reported by the official Human Rights Monitoring Body (l'Observatoire national des droits de l'Homme, ONDH) for the end of 1997, namely 34,000 inmates, of whom slightly fewer than 15,000 had been charged or convicted of acts connected to terrorism or subversion. Of the latter figure, the ONDH said, the large majority were persons suspected not of committing acts of violence but rather related offenses such as "failure to report crimes to the authorities" and providing "assistance to terrorist groups."

President Bouteflika maintained the seven-year-old state of emergency, which empowered authorities to prevent public gatherings and otherwise restrict civil rights. Meetings and gatherings deemed critical of the government were frequently banned, especially if they coincided with diplomatic meetings taking place nearby. Authorities stopped three consecutive attempts to organize rallies in Algiers to protest alleged election fraud, on April 16, April 26, and May 6.

Bouteflika said he would not re-legalize the banned Islamist Salvation Front (Front Islamique du Salut, FIS), unless it was reorganized under a new leadership. The 1996 Constitution and 1997 law on political parties outlawed parties whose basis is religious, linguistic, racial, or regional. Although Algeria had two legal parties with an Islamist coloring, the FIS had been banned since 1992.

Bouteflika showed little urgency in addressing gender inequality under the law. Algerian women's rights groups had long demanded the abrogation or amendment of the discriminatory provisions of the 1984 Family Code. This goal was endorsed by the U.N. Committee on the Elimination of Discrimination against Women, which in January 1999 examined Algeria's report on its compliance with the Convention on the Elimination of All Forms of Discrimination against Women. The committee, while condemning the impact on women of "fundamentalism and terrorist violence," urged

the government to undertake legal steps that would "harmonize the provisions of the Family Code with the text of the convention and with the principle of equality set out in the Algerian constitution." Yet, although Algeria's elected legislature had been functioning again since 1997, neither Bouteflika nor his predecessor, Liamine Zeroual, exercised any leadership in efforts to reform the code.

During 1999, a growing number of people inside Algeria went online. Benefitting from a 1998 decree governing the Internet, private companies were preparing to break the state's monopoly on selling online access. Algerian authorities were not known to block access to any Internet content, even though the Internet hosted much political material that was taboo in the Algerian news media.

Defending Human Rights

Information about human rights conditions was heavily restricted by government policies on information and access. Major international human rights organizations were prohibited from visiting the country. Foreign journalists were granted visas selectively and then assigned armed escorts, ostensibly for their own protection, who often got in the way of interviewing ordinary people. Censorship prevented the Algerian press from reporting independently on security force operations. The U.N. rapporteurs on torture and on extrajudicial, summary, or arbitrary executions were again unable to secure invitations to visit Algeria, despite long-standing requests to do so.

Nonetheless, a limited but important space existed for the work of Algerian human rights defenders. A small number of lawyers documented cases and published reports about abuses committed by government forces, receiving some coverage of their efforts in the local private media. A grassroots movement on behalf of the families of the "disappeared" continued to document cases and brought their cause to national attention, both during the presidential election campaign and afterward. Women's rights and victim's rights organizations were also active.

The government imposed limits on the public activities of human rights organizations, particularly when they coincided with a diplomatic or official human rights event. The independent Algerian League for the Defense of Human Rights was blocked from holding a conference in December 1998 to commemorate the fiftieth anniversary of the Universal Declaration of Human Rights. It was also prevented from holding a conference on human rights in Africa to coincide with the summit of the Organization of African Unity in Algiers in July. Many of the foreign invitees were denied visas.

Relatives of the "disappeared" were permitted to hold weekly rallies in Algiers and a presidential aide hospitably received a delegation from the National Association of Families of the Disappeared in July. However, the government refused to grant legal status to the organization and on at least three occasions since December 1998 police forcibly dispersed rallies on behalf of the "disappeared."

On October 10, the International Committee of the Red Cross resumed visits to prisoners in Algeria, seven years after such visits were suspended. The government agreed to allow access to all persons held in facilities under ministry of justice auspices, a program that would provide outside, albeit discreet, monitoring of the treatment of inmates.

Rachid Mesli, a prominent human rights lawyer, was freed from prison in July, only days before completing a three-year sentence imposed in an unfair trial in 1997. After the original verdict was quashed in December 1998, the court refused to free him pending his re-trial, which took place June 20 and reaffirmed the earlier conviction. Although convicted of praising "terrorism," most of the questioning after his arrest in 1996 centered on his informal collaboration with Amnesty International, Mesli said.

In September, President Bouteflika declared on more than one occasion that Amnesty International, and human rights organizations generally, were welcome in Algeria. However, as of this writing, no major international organization had been issued entry visas for its representatives. Amnesty International, Human Rights Watch, the International Federation of Human Rights, and Reporters sans Frontières all had been unable to enter Algeria since at least early 1998, despite having submitted requests to visit.

The Role of the International Community

European Union

The European Union (E.U.) was less engaged with Algeria on human rights issues than during 1998, when public horror at repeated massacres created pressure for action. The muted approach was attributable in part to the decline in violence, the favorable reception of President Bouteflika's early steps toward reform, and decidedly mixed reviews of the European démarches taken in 1998.

There were no high-profile E.U. missions such as the 1998 visits by a nine-member European Parliament delegation and by the junior foreign ministers of the troika (representing the preceding, current, and next presidents of the European Council), and no human rights hearings such as those held in the parliament in November 1997. However, shortly after Bouteflika's inauguration, the E.U. Presidency submitted a private letter to Algiers requesting information on a number of cases of "disappearances" and other abuses. No reply had been received as of the end of September.

The European Parliament took a stand for press freedom in November 1998, at a moment when several of Algeria's private newspapers had been suspended. A resolution asked the European Commission to support all projects aimed at promoting press freedom and to consider such freedom as an essential element of E.U.-Algerian cooperation.

The E.U. made clear it would not push for resolutions critical of Algeria at the meeting of the U.N. Human Rights Commission in Geneva in March-April. Instead, an E.U. statement delivered on March 31 welcomed Algeria's cooperation with the U.N. "Panel of Eminent Persons" in 1998 while cautioning that "its visit is not a substitute for cooperation with the procedures and mechanisms of the United Nations in the field of human rights....The E.U. urges Algeria to facilitate early visits of U.N. human rights mechanisms, particularly the U.N. special rapporteurs on torture and on extrajudicial, summary, or arbitrary executions and to give full effect to the [1998] concluding observations of the U.N. Human Rights Committee." The statement said the E.U. "continues to remain concerned over reports of involuntary disappearances...and calls upon the government to invite the [U.N.] Working Group on Enforced and Involuntary Disappearances to visit the country..."

The late United Kingdom minister of state for foreign affairs Derek Fatchett addressed more pointedly Algeria's continuing refusal to allow visits by the U.N. mechanisms, an issue that the E.U. delegation to the U.N. Commission one year earlier had vowed to revisit "if there has been no progress." Fatchett criticized "the repeated denial of access by Algeria to Special Rapporteurs of the Commission." Algeria, he admonished, "should not choose to undermine the credibility of United Nations mechanisms in this way."

The E.U. responded cautiously to the developments around the Algerian election, indicating in an April 21 declaration by the Presidency that relations would be guided more by how Bouteflika governed than by how he had been elected. The next statement by the E.U. Presidency on Algeria, issued September 21, confirmed E.U. enthusiasm with Bouteflika's record at that juncture. Hailing the referendum that endorsed his peace plan, the E.U. urged a resumption of talks on a E.U.-Algerian Association Agreement.

The European Commission approved a 57 million Euro financial agreement to support small and medium-scale Algerian enterprises. Under the European Commission's MEDA Democracy program, 10.3 percent of an approximate overall amount of 10 million Euros was allocated for various human rights and democracy projects in Algeria in 1998. At the time of this writing it was not possible to obtain the breakdown for 1999. However, the allocation of funds to projects in Algeria under the MEDA program had increased steadily since 1996, and the government of Algeria reportedly did not stand in the way of E.U. assistance to nongovernmental entities. Well over half of Algeria's exports and imports were with E.U. nations.

France

France eagerly mended relations with Algeria during 1999, pleased to find in President Bouteflika a willing partner. Yet French enthusiasm with a "new era" in bilateral relations was not colored by any public display of concern for governmental human rights abuses that remained systemic, albeit on a scale lower than in previous years.

Paris had remained quietly supportive of the Algiers government during the 1990s, despite strains caused by Algeria's internal strife and its spillover effects in France. Algeria's former ruler and its adversary in a brutal independence war, France was home to the world's largest Algerian diaspora community. It remained the country with the closest links to Algeria and played the leading role in setting E.U. policy. France provided little direct bilateral aid but its generous credit guarantees helped to preserve its place as the leading exporter of goods to Algeria.

In contrast to the U.S., the government of France remained silent in the lead-up to the presidential elections about what kind of voting environment it hoped to see. Its first pronouncement, issued the day after the poll, was a cautious expression of "concern" about the circumstances of the vote. After a sharp retort from Algiers about "unacceptable interference," the two countries quickly set about establishing warmer ties. President Bouteflika received Interior Minister Jean-Pierre Chevènement in June and Foreign Minister Hubert Vedrine the following month. French statements following these meetings were upbeat. "President Bouteflika is making statements and gestures that demonstrate a real opening, both on the internal level, and on the international level," Vedrine told the French Journal du dimanche upon his return. "The climate has changed. A breath of freedom has returned to Algiers."

French praise of the new president intensified following the referendum September 16 in which Algerians voted heavily in favor of Bouteflika's peace plan. The president, Vedrine told Europe 1 radio on September 17, "seems motivated by the determination to make up for lost time and eager to confront all of Algeria's problems...[and] to situate Algeria in the modern world such as it is....In this respect, I repeat: France stands ready." On September 21, at the United Nations, it was Prime Minister Lionel Jospin's turn to meet with President Bouteflika and reaffirm the new era in relations.

During this process, France indicated that it was working to address issues of concern to Algerians, including the ease of movement for Algerian citizens and air traffic between the two countries, and the reopening of closed French consulates. However, senior French officials avoided any public mention of human rights abuses committed by the state. Nor, in praising Bouteflika's peace plan, did they comment on how its durability might be affected by a failure to address grave violations.

United States

During the first half of the year, Washington remained restrained in seeking warmer ties in part because of Algeria's record of human rights abuses and manipulated elections. Algeria received no U.S. bilateral aid and for Washington paled in geopolitical significance next to the Arab-Israeli conflict, Egypt, Iran, and Iraq. The State Department's budget presentation to Congress for fiscal year 2000 maintained the U.S. has no "vital" interests in Algeria, but said "the transformation of this country into an open democracy, with a market economy would present the U.S. with major economic opportunities."

Washington continued to encourage U.S. corporations to increase their stake in natural gas-rich Algeria. The U.S. Eximbank, which provides loans and loan guarantees to assist U.S. firms doing business abroad, had a level of exposure in Algeria that was second only to Saudi Arabia among Middle East and North African countries.

Public expressions of concern about human rights were not limited to the annual State Department Country Reports. Ambassador Cameron Hume spoke out publicly on several occasions. For example, he told Le Matin daily in an interview published December 28, 1998, the U.S. "wanted to see from Algeria greater severity toward security forces that are guilty of excesses...They must be brought to justice." He also urged authorities to publish a detailed list of "disappeared" persons, according to Le Matin.

The U.S. did not press these points during the March-April meeting of the U.N. Human Rights Commission in Geneva and, in contrast to the statements made by the E.U. in 1999 and by the U.S. itself in 1998, did not criticize Algeria's refusal to allow visits by U.N. human rights rapporteurs.

The U.S. did, however, urge Algerian authorities to ensure a clean election. At an April 2 background briefing, a senior State Department official said, "If this election is reasonably open, we think that also opens the way to better bilateral relations." Washington voiced disappointment that Algiers had

refused to admit international election observers, and then outright dismay the morning after Bouteflika won what had turned into a one-man race. State Department spokesman James P. Rubin said, "We are clearly disappointed by the events of recent days, which led to allegations of fraud and the withdrawal of six of the seven candidates....The Algerian leadership now assumes a heavy responsibility to pursue credible reform."

The U.S. proceeded to put its relations with Algeria under a ninety-day review. It held no high-level bilateral meetings and broadened its existing ban on licensing private-sector sales to Algeria of lethal weapons, extending it to other types of munitions. And, while the U.S. refrained from sending Bouteflika a congratulatory telegram, First Lady Hillary Clinton received two Algerian women whose children "disappeared" during the Algerian strife, allegedly at the hands of security forces. This meeting, which took place three days after Bouteflika's inauguration, was widely reported in the Algerian press.

But Washington soon began to warm to Bouteflika. A meeting between the Algerian head of state and President Clinton at Moroccan King Hassan II's funeral in July was followed by other contacts. The U.S. maintained its policy of licensing no lethal weapon sales but resumed consideration, on a case-by-case basis, of commercial applications to sell other types of munitions to Algeria.

Assistant Secretary of State Martin S. Indyk met at length with Bouteflika in Algiers on September 6 and declared the following day, "President Clinton has been impressed by the start" that had been made by Bouteflika in the areas of political and economic reforms and human rights. "Our support for the strengthening of the democratic process, for press freedom, for the rule of law, and for human rights remains fundamental to our policy toward Algeria," Indyk declared. On September 7, Indyk hosted a meeting at the U.S. Embassy with Algerian human rights activists representing victims of abuses by the state and by the armed groups, including "disappearances" and abductions. "Disappearances," the U.S. Embassy told Human Rights Watch in an August 23 letter, is an issue "we have raised...with senior levels of the government and will continue to do so."

President Clinton sent a congratulatory telegram to President Bouteflika following the September 16 referendum. Then on September 28, Vice-Admiral Daniel Murphy, commander of the U.S. Navy's Sixth Fleet, met with President Bouteflika in Algiers. This unprecedented visit, Murphy told the press the same day, was intended "to demonstrate U.S. support for the bold, fundamental steps the Algerian leadership has taken towards a reconciliation and a real prospect for enduring democracy....The United States military is very much in partnership with the United States political leadership...in our desire to strengthen our relations with the military of Algeria."

If the U.S. was pleased to see Bouteflika trying to resolve the armed conflict and talking with more candor than his predecessors about human rights problems, it remained to be seen whether continued improvement in bilateral relations would require his taking concrete actions to curtail institutionalized abuses and establish safeguards against their recurrence.

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